Must we label what our AI produces?

Business: Example Electrical Ltd Date: 23 October 2026

Sources checked: 19 October 2026; corrected points 23 October 2026

No labelling duty under Article 50 follows from your answers.

Your AI use stays internal or reaches no public. Record the result with a date and ask again when a new use starts.

What you told us

Role	Both
Uses	Only internal: drafts, analysis, code, translations, summaries that are not published
Generates or alters content	No
On the market before 2 August 2026	No, or not yet on the market

Findings

FACT Article 50 of the AI Act has applied since 2 August 2026. Paragraphs 1 and 2 address providers, paragraphs 3 and 4 deployers. A deployer is anyone using an AI system under its authority, except in a personal non-professional activity. Where the deployer is a company, its employees acting under its instructions are not separate deployers; the company is.

→ Regulation (EU) 2024/1689, Art. 3(3) and (4), Art. 50, Art. 113, consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-19; Guidelines, annex to C(2026) 5054 final, points 12 to 16 · retrieved 2026-10-23

FACT Providers of AI systems that generate synthetic audio, image, video or text content mark the outputs in a machine-readable format. The duty does not apply to the extent the AI systems perform an assistive function for standard editing or do not substantially alter the input data provided by the deployer or its semantics.

→ Regulation (EU) 2024/1689, Art. 50(2), first and third sentence, consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-23

FACT Fines for breaches of the transparency obligations of Article 50 go up to EUR 15 000 000 or 3 % of the total worldwide annual turnover, whichever is higher; for SMEs the lower of the two amounts applies.

→ Regulation (EU) 2024/1689, Art. 99(4), point (g), and Art. 99(6) · retrieved 2026-10-19

■ FACT Paragraphs 1 to 4 do not affect the requirements of Chapter III and are without prejudice to other transparency obligations in Union or national law (Art. 50(6)).

→ Regulation (EU) 2024/1689, Art. 50(6), consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-23

◆ INTERPRETATION A label does not make a use lawful; data protection, personality rights and copyright still apply.

◐ UNCERTAIN Which authority supervises Article 50 is national law. Germany has named the Federal Network Agency (Act of 22 July 2026, in force since 29 July 2026). For Austria, as of 19 October 2026, no official source names the market surveillance authority; the duties apply regardless, because the Regulation is directly applicable.

→ KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1) · gesetze-im-internet.de · retrieved 2026-10-19; Datenschutzbehörde (Austria), page on artificial intelligence and data protection · dsb.gv.at · retrieved 2026-10-19

What to do next

- [ ] Write the result into your tool register or labelling checklist with today's date, and set a review date; a new tool or a new kind of use is the occasion to ask the questions again.

The labelling checklist (D5) of the AI Policy Toolkit records this per tool and per publication, with the provider evidence and the key dates prefilled.

Sources

1. Regulation (EU) 2024/1689 of 13 June 2024 (AI Act), consolidated version of 27 July 2026: Art. 3(3), (4) and (60), Art. 4, Art. 5(1)(f), Art. 50, Art. 99(4)(g) and (6), Art. 111(4), Art. 113. eur-lex.europa.eu · retrieved 2026-10-19; Art. 5(1)(ba) and (bb), Art. 50(2) and (6), Art. 111(4) · retrieved 2026-10-23.
2. Regulation (EU) 2026/1744 of 8 July 2026 (Digital Omnibus on AI), in force since 27 July 2026: Art. 1, points (20) and (39). eur-lex.europa.eu/eli/reg/2026/1744/oj · retrieved 2026-10-18.
3. European Commission, Guidelines on the transparency obligations under Article 50, content approved on 20 July 2026 (C(2026) 5054 final, annex): points 12 to 16, 38, 113 ff., 131, 133 to 138, 153 and 154. digital-strategy.ec.europa.eu · retrieved 2026-10-23. To be checked: formal adoption in all languages. Guidance, not law.
4. Germany: KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1). gesetze-im-internet.de · retrieved 2026-10-19.
5. Austria: Datenschutzbehörde, page on artificial intelligence and data protection, undated. dsb.gv.at · retrieved 2026-10-19.

This memo is information based on the sources listed, generated on 23 October 2026 from the answers above. It is not legal advice and decides nothing on behalf of your business. Every statement carries its marker, every source its retrieval date; check the sources again before you rely on a date.